



DEPARTMENT OF REGULATORY AGENCIES

Office of Radon Professionals

RADON PROFESSIONALS RULES AND REGULATIONS

4 CCR 754-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1 Authority

These rules and regulations are adopted pursuant to the authority in sections 12-20-204 and 12-165-105(1)(a), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, sections 24-4-101, *et seq.*, C.R.S. (the "APA"), and the Radon Measurement and Mitigation Licensing Act., sections 12-165-101, *et seq.*, C.R.S. (the "Practice Act").

1.2 Scope and Purpose

These regulations shall govern the process to become licensed Radon Measurement professionals and licensed Radon Mitigation professionals as well as the practices of radon measurement and Radon Mitigation in Colorado.

1.3 Applicability

These regulations shall govern the process to become licensed as a radon measurement professional or a radon mitigation professional and to the practice of radon measurement and radon mitigation in Colorado.

1.4 Original Licensure

This Rule is promulgated pursuant to sections 12-20-204, 12-165-105(1)(a)(I), 12-165-108, and 12-165-109, C.R.S.

A. General Requirements

1. An applicant for licensure must submit to the Director a completed application for licensure, all fees, and all supporting documentation required by the Director in order for the Director to review the application for licensure;
2. Submit proof of certification from a Proficiency Program, as defined by Rule 1.4(B);
3. Attest that the applicant maintains the required professional liability insurance pursuant to section 12-165-109, C.R.S.; and
4. Attest whether the applicant, in the last five years, has been convicted of or has entered a plea of guilty or nolo contendere as set forth in section 12-165-108(2), C.R.S.

B. Proficiency Program

1. An applicant for licensure as a radon mitigation professional or radon measurement professional who is certified through either the National Radon Proficiency Program or the National Radon Safety Board meets the proficiency requirement for licensure as set forth in section 12-165-108, C.R.S., and Director Policy 10-1.

1.5 Occupational Credential Portability Program

This Rule is promulgated pursuant to sections 12-20-202(3), 12-20-204, and 12-165-105(1)(a)(I), C.R.S.

- A. An applicant for licensure by endorsement who meets the criteria set forth in sections 12-165-108(1)(a), (b), or 2(a) and 12-165-109, C.R.S., shall be deemed to hold “substantially equivalent experience and credentials” as defined in section 12-20-202(3), C.R.S.
- B. An applicant for licensure by endorsement who has been certified as a Radon Measurement or Radon Mitigation professional through either the National Radon Proficiency Program or the National Radon Safety Board or its’ successor shall be deemed to hold “substantially equivalent experience and credentials” as defined in section 12-20-202(3), C.R.S.

1.6 Reinstatement of an Expired License

The purpose of this Rule is to establish the qualifications and procedures for reinstatement of an expired license pursuant to sections 12-165-108(3), 12-20-202, and 12-165-106, C.R.S.

- A. An applicant seeking reinstatement of an expired license shall complete a reinstatement application and pay a reinstatement fee.
- B. If the license has been expired for more than (2) years an applicant must demonstrate “competency to practice” under section 12-20-202(2)(c)(II), C.R.S., as follows:
 1. A license from another state that is in good standing for the applicant where the applicant demonstrates active practice; or
 2. Proof of certification from a proficiency program as defined in section 12-165-104(4), C.R.S., within two years immediately preceding receipt of the application for reinstatement; or
 3. Proof of other education, experience or activities determined by the Director, on a case by case basis.

1.7 Renewal of License

The purpose of this Rule is to establish the qualifications and procedures for renewal of a license pursuant to sections 12-165-108(3), 12-20-202, and 12-165-106, C.R.S.

- A. An applicant seeking to renew a license shall complete a renewal application and pay a renewal fee.
- B. A licensee shall have a sixty-day grace period after the expiration of the license to renew such license without having to submit a reinstatement application. During this grace period a delinquency fee will be charged for late renewals.
- C. A licensee who does not renew his or her license shall be ineligible to practice until such license is reinstated.

1.8 Change of Name and Address

This Rule is promulgated pursuant to sections 12-20-204 and 12-165-105(1)(a)(III), C.R.S.

- A. The licensee shall inform the Office of Radon Professionals ("Office") in a clear, explicit and unambiguous written statement of any name, address, telephone, or email change within thirty days of the change. The Office will not change a licensee's information without explicit written notification from the licensee.
 - 1. The Division of Professions and Occupations maintains one contact address for each licensee, regardless of the number of licenses the licensee may hold.
 - 2. Address change requests for some, but not all communications, or for confidential communications only, are not accepted.
- B. The Office requires a copy of one of the following forms of documentation to correct or change a licensee's name or social security number or individual taxpayer identification number:
 - 1. Marriage license;
 - 2. Divorce decree;
 - 3. Court order;
 - 4. Documentation from the Internal Revenue Service verifying the licensee's valid individual taxpayer identification number; or
 - 5. Driver's license or social security card with a second form of identification may be acceptable at the discretion of the Division.

1.9 Declaratory Orders

This Rule is promulgated pursuant to sections 12-20-204, 12-165-105(1)(a)(III), and 24-4-105(11), C.R.S.

- A. Any person or entity may petition the Director for a declaratory order to terminate controversies or remove uncertainties as to the applicability of any statutory provision or of any rule or order of the Director.
- B. The Director will determine, at her discretion and without notice to petitioner, whether to rule upon such petition. If the Director determines not to rule upon such a petition, the Director shall promptly notify the petitioner of her action and state the reasons for such decision.
- C. In determining whether to rule upon a petition filed pursuant to this rule, the Director will consider the following factors, among others:
 - 1. Whether a ruling on the petition will terminate a controversy or remove uncertainties as to the applicability to petitioner of any statutory provisions or rule or order of the Director.
 - 2. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court involving one or more petitioners.
 - 3. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court but not involving any petitioner.

4. Whether the petition seeks a ruling on a moot or hypothetical question or will result in an advisory ruling or opinion.
 5. Whether the petitioner has some other adequate legal remedy, other than an action for declaratory relief pursuant to C.R.C.P. 57, which will terminate the controversy or remove any uncertainty as to the applicability to the petitioner of the statute, rule, or order in question.
- D. Any petition filed pursuant to this Rule shall set forth the following:
1. The name and address of the petitioner and whether the petitioner is licensed pursuant to Title 12, Article 165.
 2. The statute, rule, or order to which the petition relates.
 3. A concise statement of all the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner.
- E. If the Director decides to rule on the petition, the following procedures shall apply:
1. The Director may rule upon the petition based solely upon the facts presented in the petition. In such a case:
 - a. Any ruling of the Director will apply only to the extent of the facts presented in the petition and any amendment to the petition.
 - b. The Director may order the petitioner to file a written brief, memorandum, or statement of position.
 - c. The Director may set the petition, upon due notice to petitioner, for a non-evidentiary hearing.
 - d. The Director may dispose of the petition on the sole basis of the matters set forth in the petition.
 - e. The Director may request the petitioner to submit additional facts in writing. In such event, such additional facts will be considered as an amendment to the petition.
 - f. The Director may take administrative notice of facts pursuant to the Colorado Administrative Procedure Act, section 24-4-105(8), C.R.S., and may utilize her experience, technical competence, and specialized knowledge in the disposition of the petition.
 2. If the Director rules upon the petition without a hearing, the Director shall promptly notify the petitioner of her decision.
 3. The Director may, at her discretion, set the petition for hearing, upon due notice to petitioner, for the purpose of obtaining additional facts or information or to determine the truth of any facts set forth in the petition or to hear oral argument on the petition. The hearing notice to the petitioner shall set forth, to the extent known, the factual or other matters that the Director intends to inquire.

4. For the purpose of such a hearing, to the extent necessary, the petitioner shall have the burden of proving all the facts stated in the petition; all of the facts necessary to show the nature of the controversy or uncertainty; and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner and any other facts the petitioner desires the Director to consider.
- F. The parties to any proceeding pursuant to this rule shall be the Director and the petitioner. Any other person may seek leave of the Director to intervene in such a proceeding and leave to intervene will be granted at the sole discretion of the Director. A petition to intervene shall set forth the same matters as are required by Section D of this Rule. Any reference to a "petitioner" in this rule also refers to any person who has been granted leave to intervene by the Director.
- G. Any declaratory order or other order disposing of a petition pursuant to this rule shall constitute agency action subject to judicial review pursuant to the Colorado Administrative Procedure Act at section 24-4-106, C.R.S.

1.10 Reporting Criminal Convictions or Judgments

This Rule is promulgated pursuant to sections 12-20-204, 12-165-105(1)(a)(III), and 12-165-111, C.R.S.

- A. A licensee shall inform the Director in writing within thirty days of any of the following events:
 1. The conviction of, the entry of a guilty plea or nolo contendere of the licensee to a felony outlined in section 12-165-111(1)(c), C.R.S.;
 2. A disciplinary action imposed upon the licensee by another jurisdiction that registers or licenses radon professionals, which would be a violation of section 12-165-111(1)(f) or (i), C.R.S., including, but not limited to, a citation, sanction, probation, civil penalty, or a denial, suspension, revocation, or modification of a license or registration whether it is imposed by consent decree, order, or other decision, for any cause other than failure to pay a license or registration fee by the due date or failure to meet continuing professional education requirements;
 3. Revocation or suspension by another state board, municipality, federal or state agency of any radon professional related license or registration.

1.11 Rules for Radon Measurement Professionals

These Rules are promulgated pursuant to sections 12-20-204 and 12-165-105(1)(a)(II), C.R.S.

The standards and regulations incorporated by reference may be examined at the Colorado Office of Radon Professionals, 1560 Broadway, Suite 1350, Denver, Colorado 80202, during normal business hours, Monday through Friday, except when such days are state holidays. Certified copies of the incorporated standards shall be provided at cost upon request. The standards and regulations are also available from the agency, organization or association originally issuing the code, standard, guideline, or rules as follows: the American Association of Radon Scientists and Technologists ("AARST") National Consensus of Standards <https://standards.aarst.org>. AARST's main physical office is located at 527 N Justice Street, Hendersonville, NC 28739, tel. (828) 348-0185.

These rules incorporate the standards in effect as of the date identified with each standard, and do not include any later amendments or editions of the referenced codes, standards, guidelines, or rules.

- A. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists' "Protocol for Conducting Measurements of Radon and Radon Decay Products in Schools and Large Buildings" (accessible at <https://standards.aarst.org/MALB-2014/index.html>) (effective September 1, 2021)).
- B. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists' "Protocol for Conducting Measurements of Radon and Radon Decay Products in Multifamily Buildings" (<https://standards.aarst.org/MAMF-2017/index.html>) (effective September 1, 2021)).
- C. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists protocols for Measuring Radon and Radon Decay Products in Homes (<https://standards.aarst.org/MAH-2019/index.html>) (effective January 2019)).
- D. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists protocols for the Collection, Transfer and Measurement of Radon Water (<https://standards.aarst.org/MW-RN-2020/index.html>) (effective January 2020)).
- E. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists standard for Radon Measurement Systems Quality Assurance (MS-QA-2019) (<https://standards.aarst.org/MS-QA-2019/3/index.html#zoom=z>) (effective 2019)).

1.12 Rules for Radon Mitigation Professionals

These Rules are promulgated pursuant to sections 12-20-204 and 12-165-105(1)(a)(II), C.R.S.

The standards and regulations incorporated by reference may be examined at the Colorado Office of Radon Professionals, 1560 Broadway, Suite 1350, Denver, Colorado 80202, during normal business hours, Monday through Friday, except when such days are state holidays. Certified copies of the incorporated standards shall be provided at cost upon request. The standards and regulations are also available from the agency, organization or association originally issuing the code, standard, guideline, or rules as follows: the American Association of Radon Scientists and Technologists ("AARST") National Consensus of Standards <https://standards.aarst.org>. AARST's main physical office is located at 527 N Justice Street, Hendersonville, NC 28739, tel. (828) 348-0185.

These rules incorporate the standards in effect as of the date identified with each standard, and do not include any later amendments or editions of the referenced codes, standards, guidelines, or rules.

- A. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists rules for Radon Mitigation for Schools and Large Buildings (<https://standards.aarst.org/RMS-LB-2018/index.html>) (effective September 1, 2021)).
- B. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists standards for Radon Mitigation for Multifamily Buildings (<https://standards.aarst.org/RMS-MF-2018/index.html>) (effective September 1, 2021)).
- C. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists protocols for Reducing Radon in New Construction of 1 & 2 Family Dwellings and Townhouses (<https://standards.aarst.org/CAAH-2020/index.html>) (effective January 1, 2020)).
- D. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists standards for Soil Gas Mitigation for Existing Homes (<https://standards.aarst.org/SGM-SF-2017/index.html>) (effective September 1, 2021)).

- E. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists standards for Soil Gas Control Systems in New Construction (<https://standards.aarst.org/CC-1000-2018/index.html>) (effective January 1, 2018)).
- F. The Office of Radon Professionals adopts by reference the American Association of Radon Scientists and Technologists standards for Rough-in Radon Control Components in New Construction of 1 & 2 Family Dwellings and Townhouses (<https://standards.aarst.org/RRNC-2020/index.html>) (effective January 1, 2020)).

1.13 Education, Training, or Service Gained During Military Service

This Rule is promulgated pursuant to sections 12-20-202(4), 12-20-204, and 12-165-105(1)(a)(I), C.R.S.

- A. Education, training, or service gained in military services, as identified in section 12-20-202(4), C.R.S., shall be accepted and applied towards licensure, and must be substantially equivalent, as determined by the Director, to the qualifications otherwise applicable at the time of receipt of application.
- B. It is the applicant's responsibility to provide timely and complete evidence for review and consideration.
- C. Satisfactory evidence of such education, training, or service will be assessed by the Director on a case-by-case basis.
- D. Documentation of military experience may include, but is not limited to, the applicant's Certificate of Release or Discharge from Active Duty (DD-214), Verification of Military Experience and Training (DD-2586), military transcript, training records, evaluation reports, or letters from commanding officers describing the applicant's practice.

Editor's Notes

History

New rule emer. rule eff. 07/01/2022.
Rule 1.14 emer. rule eff. 08/15/2022.
Rules 1.1-1.13 eff. 10/15/2022.
Rule 1.14 eff. 11/30/2022.
Rule 1.14 repealed eff. 02/15/2024.

Annotations

Rules 1.14 B. and 1.14 C. (adopted 10/07/2022) were not extended by Senate Bill 23-102 and therefore expired 05/15/2023.